CA 005/2025 LXT Real Estate Broker L.L.C v SIR Real Estate LLC

JANUARY 13, 2026 COURT OF APPEAL - ORDERS

Claim No: CA 005/2025

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF APPEAL

BETWEEN

LXT REAL ESTATE BROKER L.L.C

Claimant/Respondent

and

SIR REAL ESTATE LLC

Defendant/Appellant

ORDER OF THE COURT OF APPEAL

UPON the Court of Appeal Claim Form dated 29 August 2025 (the “Claim”)

AND UPON the Appellant’s Appeal Notice dated 22 July 2025 in CFI-073-2024 (the “Appeal”)

AND UPON the Respondent’s application for permission to cross appeal dated 18 September 2025 in CA-005-2025 (the “Claimant’s application for permission to cross appeal”)

AND UPON hearing Counsel for the Appellant and hearing Counsel for the Respondent at the Appeal hearing held before H.E. Chief Justice Wayne Martin, H.E. Justice Rene Le Miere and H.E. Justice Sir Peter Gross (the “Hearing)

IT IS HEREBY ORDERED THAT:

For reasons to be published in due course:

1. The Appeal is allowed and the application for security is remitted to the Court of First Instance (CFI) for reconsideration on the terms set out in these orders.

2. Pending reconsideration by the CFI, the order for security will remain in place, and any security posted pursuant to its terms will be maintained unless and until varied or revoked by the CFI following the remittal of the application.

3. Any findings or conclusions of the judge at first instance on the following matters:

(a) the portion of the proceedings to be covered by the security,

(b) the posting or staging of further security,

(c) the existence of any natural barrier or cap on the amount of security,

(d) the assessment of whether an order for security would risk stifling the claim,

(e) the effect of the Claimant's success on the Strike out application on the provision of security for the remainder of the case,

(f) any proposition that the presence of a litigation funder automatically entitles the Claimant to a reduction in the amount of the security to be posted, and

(g) the assessment of the quantum of the security to be provided, are set aside.

4. The Claimant's application for permission to cross appeal is dismissed.

5. The CFI is to deal with the remitted application for security on the basis that:

(a) the jurisdictional conditions for the grant of security have been satisfied; and

(b) the issues identified in Order 3and the issues pertaining to the proposed cross appeal have been determined adversely to the Claimant as at the time of the original application for security

For the avoidance of doubt, nothing in these orders prevents the Claimant from raising any argument based on the Crabtree principle if and when the question of security is reconsidered following the filing of a counterclaim by the Defendant.

Otherwise, the quantum, timing and terms of the security to be posted by the Claimant are matters to be left to the determination of the CFI on the remitted application.

6. The order that there be no order in respect of the costs of the application for security is set aside and it is ordered that the costs of the application for security up to and including the determination by the judge at first instance will be costs in the case.

7. The Claimant shall pay the Defendant's costs of:

(a) the initial application for permission to appeal;

(b) the renewed application for permission to appeal;

(c) the application for permission to cross-appeal; and

(d) the appeal;

assessed and fixed in the amount of AED 550,000, to be paid within 14 days. If not paid in full within that period, interest shall accrue on any unpaid amount at the rate prescribed in respect of judgments of the Court.

8. The Defendant's application for permission to appeal against the costs order made by the judge at first instance is dismissed as moot.

9. There is no order as to costs in respect of that application.

Issued by:

Delvin Sumo

Assistant Registrar

Date of issue: 13 January 2026

At: 3pm